

1 _____ BILL NO. _____
2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING LAWS REGARDING STUDENT-
5 ATHLETE RIGHTS AND PROTECTIONS; ELIMINATING THE PROHIBITION ON A POSTSECONDARY
6 INSTITUTION OR ATHLETIC ASSOCIATION, CONFERENCE, OR ORGANIZATION WITH AUTHORITY
7 OVER INTERCOLLEGIATE SPORTS FROM PROVIDING A PROSPECTIVE OR CURRENT STUDENT-
8 ATHLETE COMPENSATION FOR USE OF THE STUDENT-ATHLETE'S NAME, IMAGE, OR LIKENESS;
9 AMENDING SECTION 20-1-232, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

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11 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

12
13 **Section 1.** Section 20-1-232, MCA, is amended to read:

14 **"20-1-232. Student-athlete rights and protections -- definitions.** (1) As used in this section, the
15 following definitions apply:

16 (a) "Postsecondary institution" means a 2-year or 4-year public or private college or university
17 located in the state.

18 (b) (i) "Student-athlete rights" means the rights of a student-athlete enrolled in a postsecondary
19 institution to earn compensation for the use of the student-athlete's name, image, or likeness and to contract
20 with and retain professional representation of an athlete agent.

21 (ii) The term does not include a right to receive compensation from a postsecondary institution.

22 (2) Except as provided in subsections (3) through ~~(6)~~ (5), a postsecondary institution or an athletic
23 association, conference, or organization with authority over intercollegiate sports may not:

24 (a) prohibit, prevent, or restrict a student-athlete from exercising the student-athlete's rights;

25 (b) penalize or retaliate against a student-athlete for exercising the student-athlete's rights;

26 (c) prohibit a student-athlete from participating in an intercollegiate sport for exercising the student-
27 athlete's rights; or

28 (d) subject to subsection ~~(5)~~ (4) ~~(a)~~, impose an eligibility requirement on a scholarship or grant

1 that requires a student-athlete to refrain from exercising the student-athlete's rights.

2 (3) (a) A student-athlete may not enter into a contract that provides compensation to the student-
3 athlete for the use of the student-athlete's name, image, or likeness if terms of the contract conflict with the
4 student-athlete's team rules or with terms of a contract entered into between the student-athlete's
5 postsecondary institution and a third party, except the team rules or a contract entered into between the
6 postsecondary institution and a third party may not prevent a student-athlete from earning compensation for the
7 use of the student-athlete's name, image, or likeness when not engaged in official team activities.

8 (b) A student-athlete who enters into a contract that provides compensation to the student-athlete
9 for the use of the student-athlete's name, image, or likeness shall disclose the contract to an official of the
10 postsecondary institution if the student-athlete is a team member or, if the student-athlete is not a team
11 member, at the time the student-athlete seeks to become a team member.

12 (c) If a postsecondary institution asserts that the terms of the contract conflict with the team rules
13 or with terms of a contract entered into between the student-athlete's postsecondary institution and a third
14 party, the unit shall disclose the specific rules or terms asserted to be in conflict to the student-athlete or to the
15 student-athlete's professional representative or athlete agent if the student-athlete is represented.

16 ~~(4) — A postsecondary institution or an athletic association, conference, or organization with authority~~
17 ~~over intercollegiate sports may not provide to a prospective or current student-athlete compensation for use of~~
18 ~~the student-athlete's name, image, or likeness.~~

19 (4) A postsecondary school may:

20 (a) include provisions in scholarship agreements allowing the postsecondary school to use the
21 athlete's name, image, and likeness;

22 (b) prohibit the use of an athlete's name, image, and likeness on school property, at school
23 functions, or in any advertising material distributed or placed on school property;

24 (c) serve as an agent for the athlete to manage any contract using an athlete's name, image, and
25 likeness; or

26 (d) do any combination of subsections ~~(5)(a)~~ (4)(a) through ~~(5)(e)~~ (4)(c).

27 (5) Nothing in this section prohibits a postsecondary institution from establishing or enforcing a
28 conduct code that is applicable to all students enrolled at the unit."

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